Copyright law on Musical and Cinematograph film: A Supreme Court perspective

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Abstract

This paper contains how the Supreme Court has dealt with crucial issues, such as rights of lyricists and composers. In common practice, the cinematograph film is made of literary, dramatic and artistic work.. In India the owners of musical works and cinematograph films in India faces many challenges including ownership issues where a producer infringe the rights of composers and the lyricist. Sometimes the owners are not able to enforce their rights as it is complex. Further due to globalisation and piracy there arises piracy and unauthorized distribution of works.

Keywords: Copyright law, Supreme Court of India, musical works, cinematograph films, and law declared.

1. What is protected

Copyright protection extends to a wide range of works, including literary Works (Books, articles, poems, scripts, computer programs), Dramatic Works (Plays, choreographic works, etc.), Musical Works (Compositions with or without lyrics), Artistic Works (Paintings, sculptures, drawings, photographs, architectural designs, etc.), Cinematograph Films (Movies, videos, etc.), Sound Recordings.

2. What Rights Does Copyright Grant

Copyright gives the creator the rights of reproducting, distributing, adaptating, Communicating to the Public and translation.

3. Who Owns the Copyright?

If a work is commissioned, the person commissioning the work may own the copyright (depending on the agreement).

4. Copyright Registration

Registration is not mandatory but it is recommended. Registration provides legal evidence of ownership and can be helpful in case of infringement.

5. Copyright Law on Musical Works & Cinematograph Film

The followings are fall under the scope of musical work:

A. Remix: The term "remix" has not been defined in the Act. It is a new version of a piece of music which has been created by putting together the individual instrumental and vocal parts in a different way.

B. Song: Song is words sunt to tune. Song is not one type of work. It is a construction of different works. It is a formation of works and thus, copyright does not subsist.

In common practice, the cinematograph film is made of literary, dramatic and artistic work. The followings fall under the scope of cinematograph film:

A. Motion picture

b. Video, CD ROM, DVD captured by a closed circuit TV camera: The recording embodied in a video or a CD-ROM or a DVD or captured by a closed circuit TV camera has copyright just as much as if it was recorded on the traditional translucent film.

6. Author and Ownership

In general, the person who creates the work is the author of the work. The author of a piece of music is its composer. The Copyright Act by its clause (d) of section 2 gives the meaning of the term "author". The joint authors of a film are the producer and the principal director unless the producer and principal director are one and the same.

7. Term of Protection

The Indian Copyright Act, 1957, provides a specific term of protection for musical works. This term is crucial as it determines how long the copyright holder (or their successors) can exercise exclusive rights over their creation.

The term of copyright protection for cinematograph films is generally the same as that for other works, which is the lifetime of the author plus 60 years. However, for cinematograph films, the copyright term is calculated from the date of publication of the film.

8. Economic rights

A. Reproduction right (copying): the Reproduction right is also known as copyright.

B. Giving on hire of offer for hire (hiring right): Section 14 (d) (e) of the Act facilitate the owner's exclusive right in respect of giving on hire or offering hire the copy of a cinematograph film.

9. Moral rights

A. Right of paternity: the creator of a work possesses the right to be identified as its author, this is the basic principle of the paternity right.

B. Right of integrity: it means that an author possesses right to prevent distortion, mutilation, modification or other act in relation to the said work which would be prejudicial to his honour or reputation. This right protects the reputation of the author, which again also has its value for users of the work.

10. Infringement

According to section 51 of the Act, states that when any person, without a licence granted by the copyright or the Registrar of the Copyrights or in contravention of the conditions of a licence so granted or of any condition imposed by a competent authority under the Act reproduces the work in a material form, issues copies, makes film, store the work, performs the work shall constitute infringement.

11. Remedies

A. Civil remedies: it includes Injunction for restraining infringement or violation of copyright, damages in the form of monetary amount, account of profit, the profits to be measured by account which has been misappropriated by defendant for sale of infringed copies, and delivery up the infringing copies, the infringing copies can be claimed by the owner of copyright against infringer.

B. Criminal remedies: criminal remedies include imprisonment and imposition of fine, seizure of infringing copies and restoration of seized copies of a work or plates to the person with interest.

12. Supreme Court Cases

I. Indian Performing Rights Society Ltd. v. Eastern India Motion Pictures Association

The court's decision awarded IPRS with the rights to fee collection and royalties for the public performances of the works embedded in the films and the music in the films. Section 13(4) of the Copyright Act, 1957, treats cinematograph films as an independent and unique class of work and declares that copyright will subsist in them throughout the territory of India.

II. R. G. Anand v. Deluxe Films

The Supreme Court saw fit to dismiss the appeal as the two lower courts had on record that there was no breach of the copyright. The court also observed that as much as there is no need for a breach in copyright to be a 'hash' of the original work, a resemblance that is substantial enough will do. The court, however, remarked that with respect to stage plays, the frame of film works, proving piracy is challenging.

13. The Importance of Registering Copyright

A. Legal Recognition: registration creates formal acknowledgment of rights of the owner which assists in the enforcement of provided rights in case of violations.

B. Exclusive Rights: the registered copyrighted work is owned by the author with complete control to exploit the work commercially in any manner. This also allows the author to grant licenses for public performance, reproduction, and distribution which can result in great financial gain.

C. Protection against Infringement: registration enables the work owner to sue for the breach of their work at any time. This includes the rights to the work and to sue the infringer which usually stops others from carrying out the same illegal actions.

14. Developments

A. Parliament Passes Cinematograph (Amendment) Bill, 2023

This Act talks about illegal capture and the illegal display of recorded films. Due to this imprisonment up to 3 years and a fine of 5% may be imposed.

B. Jan Vishwas Act, 2023

The Parliament passed Jan Vishwas Act of 2023 .it removes the criminal status of many offences under different acts, including the Patents Act, 1970, Copyright Act, 1957 etc.

15. Challenges

The owners of musical works and cinematograph films in India faces many challenges including ownership issues where a producer infringe the rights of composers and the lyricist. Sometimes the owners are not able to enforce their rights as it is complex. Further due to globalisation and piracy there arises piracy and unauthorized distribution of works.

16. Suggestions

A. owners must ensure to make contracts with composers, lyricists and other concerned parties.

B. the concerned parties must carry Out Due Diligence before starting their works related to production.

C. the owners must ensure that their films does not defeat the rights of other copyrighted works.

17. Conclusion

From the above discussion we can understand that the Supreme Court has played an important role to protect the rights of authors and producer through its landmark pronouncements. It is also our duty to ensure a system where justice is served, creativity is protected and originality is celebrated.

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